

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Anthony Pascual	Team: Team # 1	CCRB Case #: 201410139	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 09/30/2014 11:00 AM	Location of Incident: 120th Precinct stationhouse and over the telephone	18 Mo. SOL 3/30/2016	Precinct: 120
Date/Time CV Reported Fri, 10/03/2014 8:55 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/03/2014 8:55 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Geovani Sanchez	23649	946215	120 PCT
2. An officer			062 DET

Officer(s)	Allegation	Investigator Recommendation
A . POM Geovani Sanchez	Discourtesy: On September 30, 2014, at the 120th Precinct stationhouse, PO Geovani Sanchez spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . An officer	Discourtesy: On October 2, 2014, over the telephone, an officer spoke discourteously to § 87(2)(b)	B . Officer(s) Unidentified

Case Summary

On September 30, 2014, at approximately 11:00 a.m., § 87(2)(b) was arrested for harassment against his son and was taken to the 120th Precinct stationhouse. § 87(2)(b) complained to officers of the smell and physical condition of the holding cell. In response to § 87(2)(b)'s complaints, PO Geovani Sanchez of the 120th Precinct stated, "You think I like that smell. I got to sit here and eat my lunch with shit" (**Allegation A**). § 87(2)(b) requested medical attention § 87(2)(b). PO Sanchez informed § 87(2)(b) that he called for EMS. § 87(2)(b) claimed that EMS took several hours to respond and that he began to feel worse. § 87(2)(b) told PO Sanchez that the officer should call 911 and not the dispatcher. § 87(2)(b) alleged that subsequently, PO Sanchez stated, "Don't tell me how to do my fucking job. You are nothing, but a low life and a prisoner. I am a police officer" (**Allegation A contd**). § 87(2)(b) was taken to Staten Island Central Booking and then released from police custody.

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

On October 2, 2014, § 87(2)(b) called the 62nd Precinct's main phone line and was transferred to the detective squad, as he had filed complaints with the detective squad against his son numerous times. An unidentified male officer told him that his complaint was "bullshit" and that it was in the trash (**Allegation B**) (encl. B1-8).

Mediation, Civil, and Criminal History

This case was not eligible for mediation because § 87(2)(b) was under arrest. As of January 22, 2015, no Notice of Claim has been filed with regard to this incident (encl. G10). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer Histories

- This is the first CCRB complaint made by § 87(2)(b) (encl. A2).
- PO Geovani Sanchez has been a member of service for seven years and has no substantiated CCRB allegations against him (encl. A1).

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) identified PO Sanchez by name and PO Sanchez acknowledged interacting with § 87(2)(b) § 87(2)(g)

§ 87(2)(b) called the main line of the 62nd Precinct and was transferred to the detective squad. The only identifying information he was able to provide for this officer was that it was a male. The 62nd Precinct detective squad's Roll Call has 13 male officers working at the time of occurrence (encl. F5). § 87(2)(g)

Allegation A—Discourtesy: On September 30, 2014, at the 120th Precinct stationhouse, PO Geovani Sanchez spoke discourteously to § 87(2)(b)

While in the holding cell, § 87(2)(b) alleged that PO Sanchez stated, "You think I like that smell. I got to sit here and eat my lunch with shit." § 87(2)(b) also alleged that PO Sanchez stated, "Don't tell me how to do my fucking job. You are nothing, but a low life and a prisoner. I am a police officer" (encl. B1-8). None of the other witnesses in the holding cells cooperated with the investigation (encl. C1).

PO Sanchez acknowledged that he spoke with § 87(2)(b) while he was in the holding cell, but denied making the aforementioned statements. PO Sanchez did not hear any other officer make these statements (encl. D1-4).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that
Allegation A be unsubstantiated.

Allegation B—Discourtesy: On October 2, 2014, over the telephone, an officer spoke discourteously to § 87(2)(b)

§ 87(2)(g)
§ 87(2)(g). It is therefore recommended that **Allegation B** be closed as **officer unidentified**.

Team: ____1____

Investigator: _____	<u>Anthony Pascual</u>	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date